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February 13, 2025

AS AMENDED

SENATE BILL NO. 896

By: Bergstrom

An Act relating to administrative rules; providing for termination of administrative rules by certain date; providing for renewal process; preserving ability of the Legislature to repeal certain rules; establishing renewal request process; requiring publication of request; directing notification to certain agencies; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 328 of Title 75, unless there is created a duplication in numbering, reads as follows:

A. 1. Any permanent rule promulgated or **otherwise in effect** on or after the effective date of this act shall automatically terminate pursuant to the schedule prescribed in paragraph 2 of this subsection.

2. The Secretary of State shall develop a schedule, subject to approval by the President Pro Tempore of the State Senate, the Speaker of the House of Representatives, and the Administrative Rules Committee chairs of both houses, for the initial expiration of

1 the administrative rules of each state agency. The schedule shall
2 prescribe twenty percent (20%) of state agencies per calendar year
3 whose rules shall expire. The schedule shall be devised as follows:

4 a. the first twenty percent (20%) of agency rules shall
5 initially expire on February 1, 2026,

6 b. the second twenty percent (20%) of agency rules shall
7 initially expire on February 1, 2027,

8 c. the third twenty percent (20%) of agency rules shall
9 initially expire on February 1, 2028,

10 d. the fourth twenty percent (20%) of agency rules shall
11 initially expire on February 1, 2029, and

12 e. the fifth and final twenty percent (20%) of agency
13 rules shall initially expire on February 1, 2030.

14 B. A rule subject to termination under this section may be
15 renewed for additional terms of five (5) years, or less, by the
16 Legislature by approval and enactment of a joint resolution.

17 C. Nothing in this section shall preclude the ability of the
18 Legislature to repeal a permanent rule prior to the automatic
19 termination of the rule under this section.

20 D. An agency may request the renewal by the Legislature of a
21 rule subject to automatic termination under this section. The
22 request shall be submitted no less than one (1) year, and no more
23 than two (2) years, prior to the date that the rule is set to
24 terminate. The agency shall demonstrate why renewal of the rule is

1 necessary and shall include a cost-benefit analysis. The agency
2 shall also publish the request on its website.

3 E. 1. Except for rules expiring pursuant to subparagraph a of
4 paragraph 2 of subsection A of this section, the Secretary of State
5 shall provide notice to the promulgating agency at least eighteen
6 (18) months prior to every rule's termination date. Agencies with
7 rules expiring under subparagraph a of paragraph 2 of subsection A
8 of this section shall be provided notice not later than sixty (60)
9 days after the effective date of this act.

10 2. Lack of notice under this subsection shall not prevent
11 expiration of any rules under an agency's purview.

12 SECTION 2. This act shall become effective July 1, 2025.

13 SECTION 3. It being immediately necessary for the preservation
14 of the public peace, health or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

17 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES
18 February 13, 2025 - DO PASS AS AMENDED
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